



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: OMOJOLA v HEY, 2025 ONLTB 86599

Date: 2025-12-12

File Number: LTB-T-078619-25-RV

In the matter of: 3025 THE CREDIT WOODLANDS
MISSISSAUGA ON L5C2V3

Between: ADESOLA OMOJOLA

Tenant

And

LOVIE ANN HEY
RYAN HEY

Landlords

Review Order

ADESOLA OMOJOLA (the 'Tenant') applied for an order determining that LOVIE ANN HEY and RYAN HEY (the 'Landlords'):

- entered the rental unit illegally.
- altered the locking system on a door giving entry to the rental unit or residential complex without giving the Tenant replacement keys.
- substantially interfered with the reasonable enjoyment of the rental unit or residential complex by the Tenant or by a member of their household.
- harassed, obstructed, coerced, threatened or interfered with the Tenant.

This application was resolved by order LTB-T-078619-25, issued on October 27, 2025.

On November 4, 2025, the Tenant requested a review of the order.

A preliminary review of the review request was completed without a hearing. In determining this request, I reviewed the materials in the LTB's file as well as the audio recording for this hearing.

Determinations:

1. On the basis of the submissions made in the request, I am not satisfied that the Tenant was not reasonably able to participate in the proceeding, or that a serious error occurred in the proceeding or that there is a serious error in the order.
2. The hearing recording confirms the Tenant's agent (mother) attended and participated in the October 10, 2025 Board proceeding. The Tenant's agent advised the Board that she

was authorized to act for the Tenant, who elected to attend school instead of the Board hearing. The Tenant's agent introduced evidence and submissions in support of the Tenant's application.

3. I find that the Board did not err by declining to hear from the Tenant, who joined the Board proceeding at the end of the hearing and after the Tenant's agent introduced evidence and cross-examined the Landlords. The Tenant's apparent decision to attend school instead of the Board hearing was not reasonable in the circumstances. Moreover, the October 27, 2025 order correctly finds that the Tenant's agent did not ask to adjourn the October 10, 2025 hearing, and the Board's application record shows the Tenant did not submit a request to reschedule the hearing, per Rule 21. There was, therefore, no basis for the presiding Board Member to adjourn the hearing. The Member correctly permitted the Tenant's agent to act on the Tenant's behalf, and the Member was entitled to consider the Tenant's agent's evidence and submissions.
4. I find from the above that the Tenant did participate in the October 10, 2025 Board proceeding through the Tenant's agent. There is therefore no merit to the Tenant's submission that they were not reasonably able to participate in the proceeding.
5. The hearing recording and October 27, 2025 Board order show that the Tenant's agent was aware of the issues to be determined arising from the Tenant's application, and that the Tenant's agent exercised the right to fully participate in the proceeding. The Tenant and Tenant's agent were therefore afforded procedural fairness as described in section 183 of the *Residential Tenancies Act, 2006*, and no error occurred in the proceeding.
6. Although the Tenant disagrees with the Member's decision to dismiss the application, the order shows there was a rational, evidentiary basis for the Member to find at paragraph 29 that the tenancy ended in June 2025. The Member, for example, cites evidence of communication between the Tenant and Landlords that shows the parties agreed in June 2025 to end the tenancy that month. The Tenant's agent tested the Landlords' evidence through cross-examination at the hearing. As the finder of fact, the Member was entitled to accept the Landlords' sworn testimony of conversations with the Tenant that were consistent with documentary evidence. There was, therefore, a reasonable basis for the Member to find the tenancy ended in June 2025. The finding is in the circumstances entitled to deference.
7. There is therefore no error in the October 27, 2025 Board order.
8. Having correctly found that the parties agreed to end the tenancy in June 2025, evidence of the value of the Tenant's abandoned personal property – which remained in the Landlords' possession on the hearing date – is not relevant. Additionally, the Tenant fails to explain in the review request why the information described in the review submission was not introduced at the October 10, 2025 Board hearing. The material is therefore not "Fresh evidence".

9. Since the Tenant did not show that they were not reasonably able to participate in the Board proceeding, or that an error occurred in the proceeding or exists in the October 27, 2025 Board order, the Tenant's request to review the order must be denied.

It is ordered that:

1. The request to review order LTB-T-078619-25 issued on October 27, 2025 is denied. The order is confirmed and remains unchanged.

December 12, 2025

Date Issued

Harry Cho

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

2025 ONLTB 86599 (CanLII)